



## **DECISION**

Complaint No. : POS/6231/KHE-304/2021

Name and Address of the Complainant : Mr. Khalid Usman, House No. 43-4-F, PECHS, Block-06, Karachi.

Name of the Agency Complained against : Sindh Building Control Authority (SBCA)

Name & Designation of Investigation Officer : Syed Farrukh Habib  
Director, Regional Office, Karachi (East)

Subject :-

**COMPLAINT AGAINST SBCA FOR NOT PROVIDING DE-SEALING DOCUMENTS / REASON OF DE-SEALING OF HOUSE NO.43/3/F BLOCK-6, PECHS, WHICH WAS SEALED ON ACCOUNT OF COMMERCIAL USE OF RESIDENTIAL PLOT.**

### **THE COMPLAINT**

Mr. Khalid Usman, in his complaint dated 25.11.2021, stated that he is resident of House No. 43/4/F PECHS Block-6, and had filed a complaint against the Sindh Building Control Authority (SBCA) regarding their failure to provide the de-sealing documents or justification for the de-sealing of House No. 43/3/F Block-6, PECHS, Karachi, which was earlier sealed by SBCA on account of illegal commercial activity and unauthorized construction. The complainant raised concerns over the repeated violation of the sealing of premises and continuation of commercial activity in the form of a school ("Head Start School System") at the said premises. He, therefore, solicited intervention of this office in the matter.

### **PROCEEDINGS**

2. After admission of complaint by condoning delay under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991, (amended up to date), as well as after receiving mandatory Affidavit on Form "A" and other relevant documents, the matter was taken up with the concerned agency (SBCA). The Assistant Director (East), SBCA vide his report dated 15.12.2022 informed that the matter is sub judice before the Hon'ble High Court of Sindh in C.P No. D-133/2022, where the honourable court has directed SBCA for legal action. The Hon'ble Court has later issued injunctive orders as well and directed SBCA to submit compliance.

### **FINDINGS**

3. I have examined case file, perused the record and observed that subject matter is already sub-judice before the court of law and jurisdiction of this institution is ousted.

### **CONCLUSION**

4. In view of the above, the complaint is disposed of as closed.

*Given under my hand and seal of the office*



**Sd/-**  
(Muhammad Sohail Rajput)  
Sitara-e-Imtiaz. PAS  
Ombudsman Sindh

Karachi, dated

21, 11, 2025